

25STCV25143 25STCV25143

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-14

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Case Number: 25STCV25143 Hearing Date: September 14, 2026 Dept: 512

HEARING DATE: Mon., September 14, 2026 JUDGE

/DEPT: Mkrtchyan/512

CASE NAME: Windsor

v. Volunteers of America LA COMP.

FILED: 08-26-25

CASE NUMBER: 25STCV25143

NOTICE:

OK

PROCEEDINGS: AMENDED MOTION TO BE RELIEVED AS
COUNSEL

MOVING PARTY: Counsel

Eric D. Tims of Lavi & Ebrahimian, LLP for Plaintiff Whisper N.

Windsor

RESP. PARTY: None

MOTION TO BE RELIEVED AS COUNSEL

(CCP § 284, CRC, rule 3.162)

TENTATIVE RULING:

Counsel Eric D. Tims of Lavi

& Ebrahimiian, LLP's Amended Motion

to be Relieved as Counsel for Plaintiff Whisper N. Windsor is GRANTED.

The Court's Ruling and Attorney's

relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is ordered to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct
Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 9, 2026 ☐ Late ☒ None

REPLY: None
filed as of September 9, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On August 26, 2025, Plaintiff Whisper
N. Windsor ("Plaintiff") filed the instant PAGA action against Defendant
Volunteers of America Los Angeles ("Defendant") and Does 1-100.

On December 10, 2025, Defendant filed

an Answer.

On July 20,
2026, Counsel Eric D.

Tims of Lavi & Ebrahimian, LLP (“Counsel”) filed the instant Motion to be
Relieved as Counsel for Plaintiff (the “Motion”).

On August 14,
2026, the Court continued the hearing on the Motion due to defective service
and notice of hearing. (8/14/26 Order.) That same day, the Court served the
8/14/26 Order, and Plaintiff also filed and served Notice of Ruling. (8/14/26
Cert. of Service; Notice of Ruling.)

Also, that same
day, Counsel filed and served an Amended Motion and accompanying documents.

No Opposition to
the Amended Motion has been filed.

II.
Legal
Standard

Code
of Civil Procedure section 284 states that “the attorney in an action...may be
changed at any time before or after judgment or final determination, as
follows: (1) Upon the consent of both client and attorney...; (2) Upon the order
of the court, upon the application of either client or attorney, after notice
from one to the other.” (Code Civ. Proc., § 284; Cal. Rules of Court, rule
3.1362.) “The determination whether to
grant or deny a motion to withdraw as counsel lies within the sound discretion
of the trial court.” (Manfredi & Levine v. Superior Court (1998) 66
Cal.App.4th 1128, 1133); see Lempert v. Superior Court (2003) 112
Cal.App.4th 1161, 1173.)

An application
to be relieved as counsel must be made on Judicial Counsel Forms MC-051 (Notice
of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal.
Rules of Court, rule 3.1362, subds. (a), (c), (e).)

In addition,

California Rules of Court, rule 3.1362 subsection (d) requires that the notice of motion and motion, declaration, and proposed order be served on the client and all other parties who have appeared in the case by personal service, electronic service, or mail. If the notice is served by electronic service, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address. (Cal. Rules of Court, rule 3.1362, subd. (d)(2).) As used in this rule, "current" means:

"[T]he address

was confirmed within 30 days before the filing of the motion to be relieved.

Merely

demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current."

(Cal. Rules of Court, rule 3.1362, subd. (d).)

III.

Discussion

On July 20, 2026, Counsel moved the Court to be relieved as attorney of record for Plaintiff. (MC-051.) Counsel filed MC-051, MC-052, and MC-053 Forms as well as an additional declaration. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

On August 14, 2026, Counsel filed Amended -051, MC-052, and MC-053 Forms and an additional declaration following the Court's 8/14/26 Order.

In the Amended MC-052 Form, Counsel seeks to be relieved on the following grounds:

Ms. Windsor has failed to maintain communication with counsel. The telephone number on file has been out of

service for several months, and counsel has been unable to contact her by telephone, email, certified no-contact letters, skip-trace results, or a locate/process-service effort. Continued representation has become unreasonably difficult because counsel cannot obtain litigation instructions, verify necessary information, prepare Ms. Windsor for discovery or case events, or otherwise prosecute the matter consistent with counsel's professional obligations. See accompanying Declaration of Eric D. Tims.

(Amended MC-052, ¶ 2.)

The Court is satisfied with Counsel's reasons for seeking to be relieved. (Cal. Rules of Professional Conduct, rule 1.16.) The Court also finds the Amended Motion satisfactorily complies with California Rules of Court, rule 3.1362.

Accordingly, Counsel's Amended Motion is GRANTED.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

IV.

Conclusion & Order

Accordingly, Counsel Eric D. Tims of Lavi & Ebrahimi, LLP's Amended Motion to be Relieved as Counsel for Plaintiff Whisper N. Windsor is GRANTED.

The Court's Ruling and Attorney's relief as Counsel of record for client is not effective until Proof of Service of the Order signed by the Court upon the client is served and filed in this action. Until then, counsel continues to be counsel of record. (Cal. Rules of Court 3.1362(e).)

Plaintiff's Counsel is ordered to give notice.